

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/05/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01581477 Gross v. Gross	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 25), Request for Judicial Notice (ROA 23), Plaintiff's Opposition to Defendant's Demurrer (ROA 32) and Plaintiff's Declaration in Support (ROA 34). The Court GRANTS the request for Judicial Notice made by the Defendant. "A demurrer tests the pleading alone, and not the evidence or the facts alleged. Thus, a demurrer will be sustained only where the pleading is defective on its face." (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.</i> (1998) 68 Cal.App.4th 445, 459.) The Court may take Judicial Notice in review of a demurrer. The Grant Deed in this matter clearly shows that the subject property is owned by "Sally Warpinski, and her successors, as Trustee of the Lion King Family Trust dated December 21, 2017" (Exhibit C). Plaintiff requests that the Court consider the Declaration of Sue Gross in this demurrer proceeding, which is improper as the Court is not allowed to consider extrinsic evidence as cited in the Plaintiff's own moving papers (page 4 of the Opposition, lines 13-15).

		As to that sole basis, the Court SUSTAINS the Demurrer and grants leave to amend the Complaint. Plaintiff is ordered to file an Amended Complaint within 5 business days of the Court hearing.
3	30-2026-01582151 12575 9th Street, L P. vs. Flores	The Court has read and considered Defendants Sarah Angulo and Pedro R. Torres' Motion to Quash Service (ROA 29) and Plaintiff's Opposition (ROA 42). The Court takes Judicial Notice of the Proof of Service of Summons regarding Pedro R. Torres (ROA 16), Proof of Service of Summons regarding Yesseln C. Flores aka Yesselin Torres (ROA 12), Proof of Service of Summons regarding Sarah Angulo (ROA 10), and Proof of Service of Summons regarding Pedro L Torres (ROA 8). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code section 647. Here, registered process server George Craig (Los Angeles #2019267578) personally served Pedro R. Torres and Yesselin Torres on 7/9/2026 at 1:29 PM. Process Server Craig served Sarah Angulo via substitute service of co-occupant Pedro R. Torres on July 10, 2026 at 8:43 AM after documenting at least 2 prior attempts at personal service. The only evidence submitted by the Defendants in support of their motion to quash service is that they were not personally served. The Defendants' self-serving statements alone do not rebut the presumption under Evidence Code section 647. The Court DENIES the Defendants' Motion to Quash Service of Summons. In review of this file, the Court observed that the Defendants, Yesselin C. Flores aka Yesselin Torres and Pedro L. Torres, filed a Motion to Dismiss on 7/27/2026, the same day as the motion to quash service of summons in this matter. The Motion to Dismiss is set for hearing on 8/28/2026. A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. As the Motion to Dismiss is not a proper filing under CCP § 1170(a), the Court is STRIKING the Motion to Dismiss. All Defendants are ordered to file a responsive pleading under CCP § 1170(a) within 5 calendar days. Plaintiff is ordered to serve notice of this Court's ruling.